

Mr. Sandeep Satish Gupta vs State Of Karnataka on 8 August, 2024

Author: M.Nagaprasanna

Bench: M.Nagaprasanna

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NC: 2024:KHC:32946
WP No. 20662 of 2024
C/W WP No. 20645 of 2024

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 8TH DAY OF AUGUST, 2024

BEFORE

THE HON'BLE MR JUSTICE M.NAGAPRASANNA
WRIT PETITION NO. 20662 OF 2024 (GM-RES)
C/W

WRIT PETITION NO. 20645 OF 2024 (GM-RES)

IN WP NO. 20662/2024

BETWEEN:

1. MR. SANDEEP SATISH GUPTA,
AGED ABOUT 42 YEARS,
S/O SATISH GUPTA,
R/A NO. B-75,
BEARYS ANUGRAHA,
NO.18, PATEL H. RAMAIIH MAIN ROAD,
ADJACENT TO KSFC LAYOUT,
LINGARAJAPURAM,
BANGALORE NORTH,
KARNATAKA - 560 084.

Digitally signed
by NAGAVENI

Location: HIGH
COURT OF
KARNATAKA

2. REETA GUPTA,

AGED ABOUT 68 YEARS,
W/O SATISH KUMAR GUPTA
C-10 KA, H PARK,
MAHANAGAR S.O,
LUCKNOW,
UTTAR PRADESH - 226 006.

...PETITIONERS

(BY SRI. H. SHANTHI BHUSHAN, ADVOCATE)

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NC: 2024:KHC:32946

WP No. 20662 of 2024
C/W WP No. 20645 of 2024

AND:

1. STATE OF KARNATAKA
THROUGH SUB INSPECTOR,
BANASWADI POLICE STATION,
REPRESENTED BY PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BANGALORE - 560 001.
2. MRS. ANGELINA SANDEEP GUPTA,
AGED ABOUT 35 YEARS,
W/O SANDEEP GUPTA
R/AT NO. T-202, PARVA PARK,
COX TOWN, BANGALORE,
KARNATAKA - 560 005.

...RESPONDENTS

(BY SMT. SOWMYA R., HCGP FOR R1;
SMT. SONIA RAJESH, ADVOCATE FOR R2)

THIS W.P. IS FILED UNDER ARTICLES 226 AND 227 OF
THE CONSTITUTION OF INDIA, 1950 R/W 482 OF CR.P.C
PRAYING TO QUASH THE FIR IN CRIME NO. 698/2023 OF
BANASWADI POLICE STATION FOR THE OFFENCES
PUNISHABLE UNDER SECTIONS 323, 354D, 498A, 504 AND
506 IPC IN HONBLE 11TH ADDITIONAL CHIEF METROPOLITAN
MAGISTRATES VIDE ANNEX-A DATED 02.11.2023.

IN WP NO. 20645/2024

BETWEEN:

MR. SANDEEP SATISH GUPTA,
AGED ABOUT 42 YEARS,
S/O SATISH GUPTA,
R/AT B-75, BEARYS ANUGRAHA

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NO. 18, PATEL H RAMAIAH MAIN ROAD,
ADJACENT TO KSFC LAYOUT,
LINGARAJAPURAM, BANGALORE NORTH,
KARNATAKA - 560 084.

...PETITIONER

(BY SRI. H. SHANTHI BHUSHAN, ADVOCATE)

AND :

1. STATE OF KARNATAKA
THROUGH SUB INSPECTOR,
BANASWADI POLICE STATION,
REPRESENTED BY PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BANGALORE - 560 001.
2. MRS. ANGELINA SANDEEP GUPTA,
AGED ABOUT 35 YEARS,
W/O SANDEEP GUPTA
R/AT NO. T-202, PARVA PARK,
COX TOWN, BANGALORE
KARNATAKA - 560 005.

...RESPONDENTS

(BY SMT. SOWMYA R., HCGP FOR R1;
SMT. SONIA RAJESH, ADVOCATE FOR R2)

THIS W.P. IS FILED UNDER ARTICLES 226 AND 227 OF
THE CONSTITUTION OF INDIA, 1950 R/W 482 OF CR.P.C
PRAYING TO QUASH THE FIR IN CRIME NO. 47/2024 OF
PULAKESHINAGAR POLICE STATION FOR THE OFFENCES
PUNISHABLE UNDER SECTIONS 354D IPC, ON THE FILE OF IN

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HONBLE 11TH ADDL. CHIEF METROPOLITAN MAGISTRATES
MAYO HALL AT BANGALORE VIDE ANNEX-A.

THESE PETITIONS, COMING ON FOR PRELIMINARY
HEARING, THIS DAY, ORDER WAS MADE THEREIN AS UNDER:

CORAM: HON'BLE MR JUSTICE M.NAGAPRASANNA

ORAL ORDER

Heard Sri. H.Shanthi Bhushan, learned counsel appearing for the petitioners, Smt. Sowmya R., learned HCGP appearing for respondent No.1 and Smt. Sonia Rajesh, learned counsel appearing for respondent No.2.

2. The petitioners during the pendency of the proceedings, they have settled the dispute by drawing up certain terms of settlement. The application filed under Section 320 of the Cr.P.C. seeking compounding of the offence reads as follows:

In W.P.No.20662/2024:

"APPLICATION UNDER SECTION 320 READ WITH SECTION 482 OF CODE OF CRIMINAL PROCEDURE, 1973 JOINTLY FILED THE PETITIONER AND RESPONDENT NO.2 NC: 2024:KHC:32946 Petitioner and the Respondent No.2 submits as follows:

1. The petitioner and the Respondent No.2 are the legally wedded husband and wife. Out of the wedlock Petitioner and the Respondent No.2 have a son. Son is currently in the care and custody of the Respondent No.2/mother. Petitioner No.2 is the mother of the Petitioner No. 1.

2. After a few years of marriage as the dispute arose between the parties the Petitioner and the Respondent No.2 are residing separately since July 2023.

3. On 02-11-2023, the Respondent No.2 filed a complaint against the Petitioner No.1 and 2 before the Police, consequently an FIR came to be registered in Crime No. 698/2023 of Banaswadi Police Station for the offenses punishable under Sections 323, 354D, 498A, 504 and 506 IPC.

4. It is alleged in the complaint that - It is alleged in the complaint that - Petitioner No.1 is the husband and Petitioner No.2 is the mother-in-law of the complainant respectively. Complainant alleged that her husband and herself have been residing separately since several months, that he is harassing her mentally and physically, and that he is also trespassing her house.

5. Further it is alleged that on 01-11-2023, the Petitioners assaulted her and the complainant sustained injuries on her body. Petitioner No. 1 has installed a GPS tracker in the complainant's car and she further alleges that there is danger to her and Petitioner No.1 is forcibly taking the child. Based on this an FIR came to be registered against the Petitioners.

6. During the pendency of all these cases which all arise out of the matrimonial dispute between Petitioner and the Respondent No.2 due to the intervention of family and relatives, the parties have compromised all the disputes between them on the following terms and conditions:-

a. Petitioner No.1 and the Respondent No.2 have jointly filed a petition before the Family Court for judicial separation in M.C No. 3993/2024 on the file of I st NC: 2024:KHC:32946 Additional Family Court, Bangalore, said case came to be settled

before the Bangalore Mediation Centre.

b. That parties take necessary steps to quash all the pending cases against each other.

c. FIR in Crime No. 698/2023 of Banaswadi Police Station for the offenses punishable under Sections 323, 354D, 498A, 504 and 506 IPC, filed by the Respondent No.2 against her husband/Petitioner No.1 and mother-in-law/Petitioner No.2 shall be quashed on account of compromise by reporting compromise and filing necessary application under Section 482 CrPC.

7. This compromise is entered between the parties voluntarily and out of their own free will. There is no coercion or undue influence by anybody. All the disputes arise on account of matrimonial dispute and the parties have decided to settle all the matters and close all the cases in view of the compromise.

8. This compromise is in the best interest of all parties. This compromise is arrived at by the parties after due deliberations, consultations in the presence of relatives and well-wishers.

WHEREFORE, it is prayed that this Hon'ble Court be pleased to quash the FIR in Crime No. 698/2023 of Banaswadi Police Station for the offenses punishable under Sections 323, 354D, 498A, 504 and 506 IPC, in the interest of justice and equity.

In W.P.No.20645/2024:

"APPLICATION UNDER SECTION 320 READ WITH SECTION 482 OF CODE OF CRIMINAL PROCEDURE, 1973 JOINTLY FILED THE PETITIONER AND RESPONDENT NO.2 Petitioner and the Respondent No.2 submits as follows:

1. The petitioner and the Respondent No.2 are the legally wedded husband and wife. Out of the wedlock Petitioner NC: 2024:KHC:32946 and the Respondent No.2 have a son. Son is currently in the care and custody of the Respondent No.2/mother.

2. After a few years of marriage as the dispute arose between the parties the Petitioner and the Respondent No.2 are residing separately since July 2023.

3. On 02-02-2024, the Respondent No.2 filed a complaint against the Respondent No.1 Police against the Petitioner, consequently an FIR came to be registered in Crime No. 47/2024 of pulakeshi nagar Police Station for the offenses punishable under Sections 354D IPC.

4. It is alleged in the complaint that - Petitioner is the husband of the complainant. Complainant alleged that her husband and herself have been residing separately since several months, that he is harassing her mentally and physically, and that he is

also trespassing her house.

5. It is further alleged that Petitioner has installed a GPS tracker in the complainant's car and she further alleges that there is danger to her and Petitioner tried to enter the society in which the complainant is residing. Also the petitioner tried to kidnap the child from his school bus.

6. All these behaviours of the petitioner are affecting the complainant and her son in a negative way and the petitioner went right to enter the society. He was being added to the blacklist by the society management. Based on these things, the complainant filed a complaint.

7. During the pendency of all these cases which all arise out of the matrimonial dispute between Petitioner and the Respondent No.2 due to the intervention of family and relatives, the parties have compromised all the disputes between them on the following terms and conditions :-

a. Petitioner and the Respondent No.2 have jointly filed a petition before the Family Court for judicial separation in M.C No. 3993/2024 on the file of I Additional Family Court, Bangalore, said case came to be settled before the Bangalore Mediation Centre.

b. That parties take necessary steps to quash all the pending cases against each other.

NC: 2024:KHC:32946 C. FIR in Crime No. 47/2024 of Pulakeshinagar Police Station for the offenses punishable under Sections 354D IPC filed by the Respondent No.2 against her husband/Petitioner shall be quashed on account of compromise by reporting compromise and filing necessary application under Section 482 CrPC.

8. This compromise is entered between the parties voluntarily and out of their own free will. There is no coercion or undue influence by anybody. All the disputes arise on account of matrimonial dispute and the parties have decided to settle all the matters and close all the cases in view of the compromise.

9. This compromise is in the best interest of all parties. This compromise is arrived at by the parties after due deliberations, consultations in the presence of relatives and well-wishers.

WHEREFORE, it is prayed that this Hon'ble Court be pleased to quash the FIR in Crime No. 47/2024 of Pulakeshinagar Police Station for the offenses punishable under Sections 354D IPC, on the file of 11th Addl. CMM Court Mayo Hall, Bangalore, in the interest of justice and equity."

3. In the light of compounding applications being filed along with the affidavits and offences not being against the State, I deem it appropriate to accept the compounding applications and terminate the proceedings against the petitioners in the subject petition.

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4. For the aforesaid reasons, the following:

ORDER i. Criminal Petition is disposed.

ii. Proceedings pending in Crime Nos.698/2023 and 47/2024, stand quashed qua the petitioners.

Sd/-

(M.NAGAPRASANNA) JUDGE SJK CT: BHK